

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

----- X

DANNY PRICE AND TIFFANY EVANS,

Plaintiffs,

-against-

THE CITY OF NEW YORK, DETECTIVE DAVID
LAMBERT, Shield 12878, POLICE OFFICER THOMAS
MARFOGLIO, DETECTIVE RUSSO and POLICE
OFFICERS JOHN DOES NUMBERED ONE THROUGH
TEN,

Defendants.

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SUMMONS

Index No.:

The Basis of Venue is:
Location of Incident

Plaintiff designates Kings
County as the place of trial.

To the above named Defendants:

You are hereby summoned to answer the verified complaint in this action, and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance on the Plaintiff's attorneys within twenty days after the service of this summons, exclusive of the day of service, where service is made by delivery upon you personally within the state, or, within 30 days after completion of service where service is made in any other manner. In case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the verified complaint.

DATED: New York, New York
April 26, 2017

Yours, etc.

/s/
JACOBS & HAZAN, LLP.
STUART E. JACOBS, ESQ.
Attorney for Plaintiff
30 Vesey Street, 4th Floor
New York, New York 10007
(212) 577-2690

TO: City of New York, Corporation Counsel, 100 Church Street, NY, NY 10007
Detective David Lambert, Shield 12878, 79th Precinct Detective Squad
Police Officer Thomas Marfoglio, 79th Precinct
Detective Russo, Brooklyn North Warrant Squad

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

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DANNY PRICE AND TIFFANY EVANS,

Plaintiffs,

INDEX NO.:

VERIFIED COMPLAINT

-against-

THE CITY OF NEW YORK, DETECTIVE DAVID
LAMBERT, Shield 12878, POLICE OFFICER THOMAS
MARFOGLIO, DETECTIVE RUSSO and POLICE
OFFICERS JOHN DOES NUMBERED ONE THROUGH
TEN,

JURY TRIAL DEMANDED

Defendants.

----- X

Plaintiffs DANNY PRICE AND TIFFANY EVANS, by their attorneys, Jacobs & Hazan, LLP, as and for their Verified Complaint herein, allege upon information and belief as follows:

PRELIMINARY STATEMENT

1. This is a civil rights action to recover money damages arising out of defendants' violation of plaintiffs' rights as secured by the Civil Rights Act, 42 U.S.C. Sections 1983 and 1988, and of rights secured by the First, Fourth, Fifth and Fourteenth Amendments to the United States Constitution, and the common law and the laws of the State of New York. On March 25, 2015, at approximately 6:00 a.m., plaintiff Tiffany Evans was lawfully present inside of her home located at 393 Herzl Street, Apt. 1F, Brooklyn, New York 11212, when defendant Detective Russo and several John Doe Police Officers assigned to the Brooklyn North Warrant Squad forcibly entered plaintiff Tiffany Evans' home, without a warrant, consent or any legal justification, approached the bed where plaintiff Tiffany Evans was sleeping, shined their flashlights in her eyes, pointed their firearms at her head, viewed her mostly nude body, frightened plaintiff Evans, and unlawfully seized plaintiff Evans while they conducted an unlawful search of the apartment for approximately 20 minutes before they ended the unlawful seizure of plaintiff and exited her home without providing plaintiff Evans with any explanation for why the officers were inside plaintiff Evans' home. Additionally, the defendant officers' unlawfully seized plaintiff's vehicle for an extended period of time in violation of her Fourth, Fifth and Fourteenth Amendment Rights under the United States Constitution.

2. Thereafter, on March 30, 2015 at approximately 10:00 a.m., plaintiff Danny Price appeared at the 79th Precinct Detective Squad, 263 Tompkins Avenue, Brooklyn, NY, 11216, at the request of defendant Detective David Lambert and upon arriving at the station house, defendant Detective Lambert unlawfully seized and falsely arrested plaintiff Danny Price,

without probable cause or any legal justification to arrest or seize Mr. Price. Defendant Detective David Lambert then proceeded to violate plaintiff David Price's Fourth, Fifth and Fourteenth Amendment Rights, including plaintiff's right to counsel and plaintiff's right due process by continuing the unlawful seizure of plaintiff Price, ignoring plaintiff Price's requests for an attorney to be present if plaintiff was forced to stand in a line-up, forcing plaintiff Price to stand in a unduly suggestive line-up without an attorney present, and fabricating evidence regarding whether the complainant identified plaintiff when he viewed the line-up and forcing/pressuring the crime victim to choose plaintiff as the individual who robbed him when he viewed the line-up even though complainant initially chose another individual from the line-up and advised Detective Lambert that he did not recognize plaintiff Price as one of the individual's that robbed him. Thereafter, the defendant officers denied plaintiff Price the right to due process/right to fair trial by providing the King's County District Attorney's Office with false/fabricated evidence about whether the crime victim identified plaintiff Price as one of the individuals who robbed him and withheld important Brady evidence from the District Attorney's Office regarding the fact that the crime victim initially chose another individual from the line-up as the person who he believed robbed him and affirmatively told Detective Lambert that he did not recognize plaintiff Price as one of the individuals that robbed him. Detective Lambert maliciously prosecuted plaintiff Price by initiating a felony criminal prosecution against him without probable cause on March 31, 2015 when plaintiff Danny Price was arraigned in Kings County Criminal Court and charged with several serious crimes he did not commit. Plaintiff Danny Price was required to appear in Criminal Court on approximately two occasions and all criminal charges brought against plaintiff Price were dismissed and sealed in their entirety on June 2, 2015 after the Kings County District Attorney's Office affirmatively moved to dismiss the charges against plaintiff Price.

3. The defendant police officers' unlawful actions toward plaintiff Tiffany Evans caused her to be fired from her job, withdraw from college, to miss school and suffer from emotional and psychological injuries. As a result of the police officers' unlawful actions, plaintiff Danny Price experienced personal, economic and emotional injuries, pain and suffering, fear, a loss of liberty, an invasion of privacy, psychological pain, emotional distress, mental anguish, embarrassment, and humiliation. Plaintiffs were both deprived of their constitutional and common law rights when the individual defendants unlawfully entered and searched their home and seized plaintiff Evans, unlawfully seized plaintiff Evans' vehicle, unlawfully searched, confined, unlawfully seized falsely arrested/ imprisoned, maliciously prosecuted, and denied plaintiff Danny Price the right to due process/ fair trial in violation of the Fourth, Fifth and Fourteenth Amendments to the United States Constitution, the common law and the laws of the State of New York.

PARTIES

4. Plaintiff Danny Price is a resident of the state of New York, lived with plaintiff Tiffany Evans at all times relevant herein, and has a child with plaintiff Tiffany Evans.

5. Plaintiff Tiffany Evans is a resident of the state of New York

6. Defendant Detective David Lambert, Shield 12878, is and was at all times relevant herein, an officer, employee, and agent of the New York City Police Department.

7. Defendant Detective David Lambert, Shield 12878, is and was at all times relevant herein, assigned to the 79th Precinct Detective Squad.

8. Defendant Detective David Lambert, Shield 12878, is being sued in his individual and official capacity.

9. Police Officer Thomas Marfoglio is and was at all times relevant herein, an officer, employee, and agent of the New York City Police Department.

10. Police Officer Thomas Marfoglio is and was at all times relevant herein, assigned to the 79th Precinct.

11. Police Officer Thomas Marfoglio is being sued in his individual and official capacity.

12. Detective Russo is and was at all times relevant herein, an officer, employee, and agent of the New York City Police Department.

13. Detective Russo is and was at all times relevant herein, assigned to the Brooklyn North Warrant Squad.

14. Detective Russo is being sued in his individual and official capacity.

15. New York City Police Officers John Does Numbered One Through Ten are and were at all times relevant herein officers, employees, and agents of the New York City Police Department.

16. Police Officers John Does Numbered One Through Ten are being sued in their individual and official capacities.

17. At all times relevant herein, the individual defendants were acting under color of state law in the course and scope of their duties and functions as agents, servants, employees and officers of the New York City Police Department, and otherwise performed and engaged in conduct incidental to the performance of their lawful functions in the course of their duties. They were acting for and on behalf of the New York City Police Department at all times relevant herein, with the power and authority vested in them as officers, agents and employees of the New York City Police Department and incidental to the lawful pursuit of their duties as officers, employees and agents of the New York City Police Department.

18. Defendant City of New York is a municipal entity created and authorized under the laws of the State of New York. It is authorized by law to maintain a police department, which acts as its agent in the area of law enforcement and for which it is ultimately responsible. The Defendant City of New York assumes the risks incidental to the maintenance of a police force and the employment of police officers as said risks attach to the public consumers of the services provided by the New York City Police Department.

19. Plaintiff Danny Price in furtherance of his causes of action brought pursuant to New York State law filed a Notice of Claims against the CITY OF NEW YORK, in compliance with the Municipal Law Section 50.

20. More than thirty (30) days have elapsed since service of said Notice of Claim was filed and THE CITY OF NEW YORK has failed to pay or adjust the claim.

21. This action falls within one or more of the exceptions as set forth in CPLR Section 1602, involving intentional actions, as well as the defendant, and/or defendants, having acted in reckless disregard for the safety of others, as well as having performed intentional acts.

22. Plaintiff has sustained damages in an amount in excess of the jurisdictional limits of all the lower Courts of the State of New York.

STATEMENT OF FACTS

23. By way of background, at all times relevant herein, plaintiffs Danny Price and Tiffany Evans lived together with their 10 month old child at 393 Herzl Street, Apt. 1F, Brooklyn, New York, 11212.

24. On March 20, 2015 plaintiff Tiffany Evans' motor vehicle was stolen from the front of her home where it was parked, by an individual now known to plaintiffs as Daniel Delarosa.

25. On March 20, 2015 when plaintiff Tiffany Evans realized that her motor vehicle was not where she last parked it, she called 311 to report the vehicle missing or stolen and the 311 operator advised plaintiff Tiffany Evans that her complaint would be referred to the New York City Police Department and a police officer would contact her to take a more detailed report within a day or two.

26. On March 22, 2015, New York City Police Officers came to plaintiff Tiffany Evans' home to take a report about plaintiff Tiffany Evans' stolen vehicle. Based upon the information about the stolen vehicle provided to the officers by plaintiff Tiffany Evans, on March 22, 2015 the officers were able to inform plaintiff Tiffany Evans that her vehicle was used to commit a crime and was in the custody of the New York City Police Department.

27. Although the officers recovered plaintiff Tiffany Evans' vehicle, they refused to return the vehicle to plaintiff Evans and even after the Kings County District Attorney's Office released the vehicle to plaintiff Tiffany Evans, the defendant police officers and the City of New York initiated civil forfeiture proceedings intended to permanently take plaintiff Evans' vehicle from her and auction the vehicle at a police vehicle auction.

28. After spending extensive time and expenses fighting to reacquire her vehicle, plaintiff Tiffany Evans' vehicle was eventually returned to her as part of a settlement with the police department and defendant City of New York.

29. As a direct and proximate cause of the unlawful seizure of plaintiff Tiffany Evans' vehicle by defendants and thereby not having possession of the vehicle for an extended period of time, plaintiff Tiffany Evans' could not easily travel to work or school and as a result she was fired from her job and ultimately dropped out of college. The unlawful seizure of her vehicle caused plaintiff Tiffany Evans to suffer lost wages for which she seeks compensatory damages herein.

30. By way of background, on March 20, 2015 at approximately 2:45 pm, a crime victim (hereinafter referred to as "JK" to protect his identity) alleges that he was at his office located at 31 Warsoff Place, Brooklyn, New York, conducting business when an unknown perpetrator entered the location, pointed a silver firearm at JK and stated, "This is a robbery, give me your money."

31. JK alleges that he had \$4,000 in cash on his person at the time of the robbery, and he threw said money at the perpetrator.

32. The perpetrator took the money, ran out of the location, got into a red Chrysler Pacifica and fled the scene.

33. JK flagged down police officers to report the crime and the police officers were able to catch up with and apprehended the red vehicle.

34. The driver of the red vehicle, Daniel Delarosa, remained inside the vehicle when the police stopped the vehicle and the perpetrator that robbed JK ran from the vehicle and fled the scene.

35. The driver of the vehicle, Daniel Delarosa was arrested by the police officers for his involvement in the robbery of JK.

36. JK recognized Daniel Delarosa because JK previously worked him and Daniel Delarosa called JK several times on March 20, 2015 to inquire about when JK would be at his office.

37. The red vehicle driven by Daniel Delarosa was registered to plaintiff Tiffany Evans.

38. Based upon the sole fact that the red vehicle belonged to plaintiff Danny Price's girlfriend, Tiffany Evans, the defendant officers immediately and incorrectly concluded that plaintiff Danny Price was the perpetrator of the robbery who fled the red vehicle.

39. However, the officers lacked any objective factual evidence to support their suspicion that plaintiff Danny Price was the perpetrator of the robbery who avoided arrest by fleeing the red vehicle and therefore did not possess probable cause to arrest plaintiff Danny price for any crime related to the robbery of JK.

40. Although defendant Detective David Lambert did not possess probable cause to arrest or detain plaintiff Danny Price for committing the robbery, Detective Lambert issued an I-Card for plaintiff Danny Price which instructed any officer who encountered Mr. Price to arrest him and bring him to Detective Lambert and Detective Lambert falsely stated in the I-Card that there was probable cause to arrest plaintiff Danny Price for his involvement in the above-described robbery.

41. After consultation with Detective David Lambert, defendant Detective Russo of the Brooklyn North Warrant Squad agreed to go to plaintiff Danny Price's home to arrest him pursuant to the unlawful I-Card issued by Detective Lambert, and to transport plaintiff Danny Price to Detective David Lambert so that Detective Lambert could place plaintiff Danny Price in a line-up that JK would view.

42. On March 25, 2015, at approximately 6:00 a.m., defendant Detective Russo and several defendant "John Doe" Police Officers unlawfully and forcibly entered and searched plaintiff Danny Price and Tiffany Evans' home located at 393 Herzl Street, Apt. 1F, Brooklyn, New York, without a warrant, consent or any legal justification, but plaintiff Danny Price was not home at the time and Detective Russo was therefore, unable to arrest plaintiff Danny Price at that time.

43. On March 25, 2015, at approximately 6:00 a.m. plaintiff Tiffany Evans was lawfully present inside of her home located at 393 Herzl Street, Apt. 1F, Brooklyn, New York 11212, when defendant Detective Russo and several "John Doe" Police Officers assigned to the Brooklyn North Warrant Squad forcibly entered plaintiffs' home, without a warrant, consent or any legal justification, approached the bed where plaintiff Tiffany Evans was sleeping, shined their flashlights in her eyes, pointed their firearms at her head, viewed her mostly nude body, frightened plaintiff Evans, and unlawfully seized plaintiff Evans while they conducted an unlawful search of the apartment for approximately 20 minutes before they ended the unlawful seizure of plaintiff Tiffany Evans and exited the home without providing plaintiff Evans with any explanation for why the officers were inside her home.

44. Pursuant to the orders of Detective David Lambert and the threat by Detective Lambert that his home would be raided a second time by Warrant Officers if plaintiff Price did not cooperate, on March 30, 2015 at approximately 10:00 a.m., plaintiff appeared at the 79th Precinct Detective Squad, 263 Tompkins Avenue, Brooklyn, NY, 11216.

45. Upon arriving at the 79th Precinct Detective Squad, plaintiff Danny Price was immediately and unlawfully handcuffed and falsely arrested/ imprisoned by Detective David Lambert, without probable cause or any legal justification to arrest plaintiff Danny Price.

46. Detective Lambert proceeded to advise plaintiff Danny Price that he was going to be placed in a line-up because he was suspected of committing a robbery.

47. Plaintiff Danny Price told Detective David Lambert that he wanted an attorney present on his behalf throughout the entire duration of time that a line-up involving plaintiff Danny Price was conducted.

48. Detective Lambert falsely advised plaintiff Danny Price that Detective Lambert called plaintiff's attorney and that his attorney said he could not come to the station house to be present for the lineup. In fact, at no time did Detective Lambert speak with plaintiff's attorney, nor did Detective Lambert even attempt to contact plaintiff's attorney, pursuant to plaintiff's request for legal counsel.

49. Detective Lambert never called plaintiff Danny Price's attorney and fabricated any conversations he allegedly had with plaintiff Danny Price's attorney.

50. Detective David Lambert unlawfully placed plaintiff Danny Price in a line-up without any legal representation present on behalf of plaintiff Danny Price.

51. Detective David Lambert further violated plaintiff Danny Price's Constitutional Rights by placing plaintiff in an unduly suggestive line-up, against his will and without any legal representation.

52. Detective David Lambert placed plaintiff Danny Price in a line-up alongside several men who had been taken from the local homeless shelter, who appeared as if they had not showered in a lengthy period of time, who were dressed in completely different attire from plaintiff and who appeared extremely disheveled and unkept, especially as compared to plaintiff who was neatly dressed, freshly showered. And wearing professional clothing that fit him.

53. Defendant Detective David Lambert threatened plaintiff Danny Price with physical injury if he refused to stand in the line-up and follow Detective Lambert's instructions.

54. JK, the victim of the robbery stood on the other side of the glass and was asked by Detective Lambert to identify whether any individual standing in the line-up was the individual that robbed him at his office.

55. JK told Detective Lambert that he was uncertain as to whether any of the individuals in the line-up was the individual that robbed him, but when pressed by Detective David Lambert to choose someone other than plaintiff from the line-up and identified him as the individual who committed the robbery.

56. Plaintiff Danny Price could hear the entire conversation JK had with Detective David Lambert on the other side of the glass partition while he viewed the line-up.

57. When JK failed to chose plaintiff Danny Price from the line-up and instead chose one of the "fillers" that Detective Lambert found at the homeless shelter, Detective Lambert became upset with JK.

58. Detective David Lambert told JK that he chose the wrong person. Further, Detective David Lambert explicitly told JK that plaintiff Danny Price was the individual that robbed him and advised JK that he should have chosen plaintiff Danny Price.

59. Then, Detective Lambert instructed JK to choose plaintiff Danny Price from the line-up.

60. JK did not want to anger Detective David Lambert any further and complied with the Detective's instructions to choose plaintiff Danny Price even though he did not recognize plaintiff as one of the perpetrators who committed the robbery against him.

61. After JK chose another person from the line-up, plaintiff Danny Price attempted to leave with the other individuals who were not chosen by JK, but Detective David Lambert would not permit plaintiff Danny Price to leave.

62. Instead, Detective David Lambert unlawfully handcuffed plaintiff and transported plaintiff Danny Price downstairs where he was unlawfully detained in a filthy and unsanitary holding cell.

63. Defendant Detective David Lambert falsified police paperwork by stating that JK chose plaintiff Danny Price from the line-up and identified him as the perpetrator of the robbery and intentionally did not document the facts that (a) JK expressed uncertainty about whether any of the individuals in the line-up was the perpetrator that robbed him; (b) when JK was pressured to choose someone from the line-up by Detective Lambert he did not choose plaintiff Danny Price and instead chose another individual from the line-up; and (c) JK only chose plaintiff Danny Price from the line-up after defendant Detective David Lambert advised JK that plaintiff Danny Price was the perpetrator that robbed him and instructed JK to choose him from the line-up.

64. Additionally, Detective Lambert and other NYPD officers fabricated allegations to the District Attorney's Office that plaintiff Danny Price was positively identified by JK in a line-up and identified as one of the perpetrators who robbed him.

65. A criminal prosecution was maliciously initiated against plaintiff Danny Price, without probable cause, based upon the false, fabricated, misleading and incomplete information provided to the District Attorneys' Office by defendant Detective Lambert and the other defendants.

66. Defendants transported plaintiff Danny Price to Kings County Central Booking on March 31, 2015 where he was unlawfully detained in several large holding cells with many other prisoners, many of whom were accused of committing violent felonies.

67. On or about March 31, 2015 plaintiff was arraigned in Kings County Criminal Court and was charged with numerous felony and misdemeanor offenses, based upon the false, incomplete, and misleading representations made by defendant Detective David Lambert about the evidence and facts in his possession that he used to establish probable cause to arrest and prosecute plaintiff Danny Price.

68. The criminal charges brought against plaintiff Danny Price at arraignment, included but were not limited to several counts of Robbery, Burglary, Grand Larceny, Criminal Possession of Stolen Property, Menacing, Petit Larceny, and Harassment.

69. On March 31, 2015 at arraignment, the Court released plaintiff Danny Price from custody on his own recognizance.

70. After plaintiff Danny Price was arraigned and charged with serious crimes, JK reached out to representatives for plaintiff Danny Price and explained that he did not choose plaintiff Danny Price from the line-up, and that he actually chose another individual.

71. JK offered to assist plaintiff Danny Price and his representatives in getting the criminal charges brought against plaintiff dismissed and sealed in their entirety because JK did not pick plaintiff Danny Price from the line-up and plaintiff Danny Price was not one of the perpetrator's that robbed him.

72. According, to JK the District Attorney's Office was pressuring him to testify against plaintiff Danny Price in the Grand Jury, and JK expressed reluctance to testify against plaintiff before the Grand Jury, but also stated that he was afraid to cause any problems with Detective Lambert if he did not testify before the Grand Jury.

73. Ultimately JK approached the Assistant District Attorney assigned to prosecute the criminal case against plaintiff Danny Price and informed the Assistant District Attorney that he could not testify against plaintiff Danny Price because he did not believe plaintiff Danny Price had any involvement in the robbery and that he was not one of the perpetrators who robbed him.

74. Additionally, an individual named "Javonica" witnessed JK view the line-up at the precinct.

75. Javonica witnessed JK choose an individual other than plaintiff from the line-up and also witnessed Detective Lambert tell JK that he chose the wrong person and order JK to choose plaintiff Danny Price and to identify him as the individual who robbed him.

76. Javonica, a complete stranger to plaintiff Danny Price prior to her involvement in his criminal case, also reached out to plaintiff Danny Price's representatives, told them what she witnessed and offered to provide plaintiff Danny Price assistance in his criminal case if her testimony was needed.

77. After, JK advised the Kings County District Attorney's Office that plaintiff Danny Price was not one of the perpetrators who robbed him, the District Attorney's Office advanced plaintiff Danny Price's next scheduled date to appear in Criminal Court from October 30, 2015 to June 2, 2015 and affirmatively moved to have all criminal charges brought against plaintiff Danny Price dismissed and sealed in their entirety.

78. Detective David Lambert and other NYPD officers denied plaintiff the right to due process/ right to a fair trial, maliciously prosecuted plaintiff by initiating and continuing a prosecution against him, without probable cause by falsifying evidence, providing false, misleading and/or incomplete information to the DA's Office and by signing a Criminal Court complaint which contained false information against plaintiff.

79. Plaintiff Danny Price was forced to appear in Kings County Criminal Court on two dates after he was released on his own recognizance at arraignment.

80. On June 2, 2015 all criminal charges brought against plaintiff Danny Price were dismissed and sealed in their entirety after the Court granted the motion affirmatively made by the King's County District Attorney's Office to dismiss and seal all criminal charges brought against him.

81. Plaintiff's suffered extreme damage to his reputation, as well as tremendous embarrassment and emotional distress when the violent criminal allegations that were initially made against him were the subject of several articles in the media and published on the internet. Although the criminal charges brought against him were dismissed and sealed in their entirety, the articles written about his arrest and published on the internet remain on the internet without any clarification that the criminal allegations made against plaintiff Danny Price were determined to be false by the District Attorney's Office. Thus, each time plaintiff applies for a job that conducts an internet search of his name, his potential employers will always see the allegations accusing plaintiff of committing a violent robbery.

82. The prospect of plaintiff's child discovering the articles about plaintiff committing a robbery on the internet when he gets older causes plaintiff enormous emotional distress and anxiety thinking about having to explain his innocence to his child.

83. The stress and anxiety caused to plaintiffs Tiffany Evans and Danny Price by from the unlawful arrest and malicious prosecution of plaintiff Danny Price and the unlawful seizure of plaintiff Tiffany Evans and her vehicle placed a tremendous amount of stress on plaintiffs' romantic relationship causing plaintiffs to argue frequently and ultimately eroded their relationship severely and to a point where it cannot be repaired.

84. Some of the individually named police officer defendants observed the violation of plaintiffs' rights under the Constitution of the United States and New York State Law and did nothing to prevent the unjustifiable entry and search of plaintiffs' home, unlawful seizure of plaintiff Tiffany Evans' vehicle, unlawful seizure of plaintiffs', false arrest/ imprisonment, malicious prosecution, denial of the right to due process/ right to a fair trial, , unlawful search, denial of the right to counsel, and assault and battery against plaintiffs.

85. The unlawful stop, question, frisk, search, false arrest, false imprisonment, malicious prosecution, abuse of process, denial of the right to due process/ a fair trial, assault battery, unlawful search, denial of the right to counsel, and the fabrication and falsification of evidence by the individually named defendants caused plaintiffs to sustain severe physical, psychological, emotional, and economic trauma.

FIRST CAUSE OF ACTION

Violation of Plaintiffs' Fourth Amendment, Fifth Amendment, and Fourteenth Amendment Rights

86. The plaintiffs repeat, reiterate and reallege each and every allegation contained in paragraphs marked 1 through 85 with the same force and effect as if more fully set forth at length herein.

87. The individually named police officer defendants while acting in concert and within the scope of their authority, unlawfully entered and searched plaintiffs' home without consent, a warrant, or legal authority to enter and search the premises, unlawfully seized and attempted to cause the forfeiture of plaintiff Tiffany Evans' motor vehicle, caused plaintiffs to be unlawfully stopped, questioned, frisked, seized, unlawfully searched, falsely arrested, falsely imprisoned, and plaintiff Danny Price to be maliciously prosecuted, subjected to abuse of process and denied the right to due process and a fair trial without probable cause and in violation of plaintiffs' rights to be free of an unreasonable seizure and denial of due process under the Fourth and Fifth Amendment of the Constitution of the United States and to be free of a deprivation of liberty under the Fourteenth Amendment to the Constitution of the United States.

SECOND CAUSE OF ACTION

False Arrest and False Imprisonment

88. The plaintiffs repeat, reiterate and reallege each and every allegation contained in paragraphs marked 1 through 87 with the same force and effect as if more fully set forth at length herein.

89. The acts and conduct of the defendants constitute false arrest and false imprisonment under the laws of the State of New York. Defendants intended to confine plaintiffs and, in fact, confined plaintiffs, and plaintiffs were conscious of the confinement. In addition, plaintiffs did not consent to the confinement and the confinement was not otherwise privileged.

90. As a direct and proximate result of such acts, defendants deprived plaintiffs of their rights under the laws of the State of New York and the United States Constitution.

91. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

92. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

93. As a result of the aforementioned conduct of defendants, plaintiffs sustained injuries, including but not limited to physical, economic, emotional and psychological injuries.

THIRD CAUSE OF ACTION

Unlawful Stop, Question, and Frisk

94. The plaintiffs repeat, reiterate and reallege each and every allegation contained in paragraphs marked 1 through 93 with the same force and effect as if more fully set forth at length herein.

95. The illegal approach, pursuit, stop, questioning and frisk employed by defendants herein terminated plaintiffs' freedom of movement through means intentionally applied.

96. The conduct of defendants in stopping, frisking, and searching, plaintiffs was performed under color of law and without any reasonable suspicion of criminality or other constitutionally required grounds.

97. As a direct and proximate result of such acts, defendants deprived plaintiffs of their rights under the laws of the State of New York.

98. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

99. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

100. As a result of the aforementioned conduct of defendants, plaintiffs sustained injuries, including but not limited to physical, economic, emotional and psychological injuries.

FOURTH CAUSE OF ACTION

Unlawful Search

101. The plaintiffs repeat, reiterate and reallege each and every allegation contained in paragraphs marked 1 through 100 with the same force and effect as if more fully set forth at length herein.

102. The illegal approach, pursuit, stop, search and entry inside of plaintiffs' home as well as the search of plaintiffs' persons employed by defendants herein terminated plaintiffs' freedom of movement through means intentionally applied.

103. Defendants lacked consent, a valid search warrant, probable cause or any legal justification to enter and search plaintiffs' home and /or to search plaintiffs' persons.

104. As a direct and proximate result of such acts, defendants deprived plaintiffs of their rights under the laws of the State of New York.

105. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

106. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

107. As a result of the aforementioned conduct of defendants, plaintiffs sustained injuries, including but not limited to emotional and psychological injuries.

FIFTH CAUSE OF ACTION

Malicious Prosecution (Plaintiff Danny Price)

108. The plaintiffs repeat, reiterate and reallege each and every allegation contained in paragraphs marked 1 through 107 with the same force and effect as if more fully set forth at length herein.

109. The acts and conduct of the defendants constitute malicious prosecution under the laws of the United States Constitution, State of New York and New York State common law.

110. Defendants commenced and continued a criminal proceeding against plaintiff Danny Price.

111. There was actual malice and an absence of probable cause for the criminal proceeding against plaintiff and for each of the charges for which he was prosecuted.

112. The prosecution and criminal proceedings terminated in plaintiff's favor on the aforementioned date.

113. Plaintiff was subjected to a post-arraignment deprivation of liberty sufficient to implicate plaintiff's Fourth Amendment rights.

114. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

115. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

SIXTH CAUSE OF ACTION

Denial of Right to Fair Trial (Plaintiff Danny Price)

116. The plaintiffs repeat, reiterate and reallege each and every allegation contained in paragraphs marked 1 through 115 with the same force and effect as if more fully set forth at length herein.

117. Defendants, individually and collectively, manufactured false and fabricated evidence and/or withheld exculpatory evidence from and forwarded false evidence to prosecutors in the Kings County District Attorney's Office.

118. Defendants filled out false, fabricated, and misleading police reports and forwarded them to prosecutors in the Kings County District Attorney's Office.

119. Defendants signed false, fabricated, and misleading criminal court affidavits/ complaints and forwarded them to prosecutors in the Kings County District Attorney's Office.

120. In withholding/creating false evidence against plaintiff Danny Price and in providing/withholding information with respect thereto, defendants violated plaintiff Danny Price's constitutional right to due process and his right to a fair trial under the New York State Constitution and under the Due Process Clause of the Fifth and Fourteenth Amendments of the United States Constitution.

121. As a result of the foregoing, plaintiff Danny Price, sustained, inter alia, loss of liberty, emotional distress, embarrassment and humiliation, lost earnings and deprivation of his constitutional rights.

122. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

123. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

SEVENTH CAUSE OF ACTION

Malicious Abuse of Process (Plaintiff Danny Price)

124. The plaintiffs repeat, reiterate and reallege each and every allegation contained in paragraphs marked 1 through 123 with the same force and effect as if more fully set forth at length herein.

125. Defendants issued legal process to place plaintiff Danny Price under arrest.

126. Defendants arrested and prosecuted plaintiff Danny Price in order to obtain a collateral objective outside the legitimate ends of the legal process.

127. Defendants acted with intent to do harm to plaintiff Danny Price, without excuse or justification.

128. As a result of the foregoing, plaintiff Danny Price sustained, inter alia, loss of liberty, emotional distress, embarrassment and humiliation, lost earnings and deprivation of his constitutional rights.

129. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

130. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

EIGHTH CAUSE OF ACTION

Failure to Intervene

131. The plaintiffs repeat, reiterate and reallege each and every allegation contained in paragraphs marked 1 through 131 with the same force and effect as if more fully set forth at length herein.

132. Defendants had an affirmative duty to intervene on behalf of plaintiffs, whose constitutional rights were being violated in their presence by other officers.

133. Defendants failed to intervene to prevent the unlawful conduct described herein.

134. As a result of the foregoing, plaintiffs' liberty was restricted for an extended period of time, they were put in fear of their safety, and they were humiliated and subject to other physical constraints.

135. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

136. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

JURY DEMAND

PRAYER FOR RELIEF

Dated: New York, New York
April 26, 2017

By: /s/
STUART E. JACOBS
DAVID M. HAZAN
JACOBS & HAZAN, LLP
Attorneys for Plaintiff
30 Vesey Street, 4th Floor
New York, NY 10007
(212) 577-2690

ATTORNEY'S VERIFICATION

STUART E. JACOBS, an attorney duly admitted to practice before the Courts of the State of New York, affirms the following to be true under the penalties of perjury:

I am a partner of the law firm of **JACOBS & HAZAN, LLP**, I have read the annexed **VERIFIED COMPLAINT** and know the contents thereof, and the same are true to my knowledge, except those matters therein which are stated to be alleged upon information and belief, and as to those matters I believe them to be true. My belief, as to those matters therein not stated upon knowledge, is based upon facts, records, and other pertinent information contained in my files. The reason this verification is made by me and not Plaintiff is because plaintiff does not reside in the county wherein I maintain my office.

DATED: New York, New York
April 26, 2017

/s/
STUART E. JACOBS